

FROM Robert Samuel White
TO David Pitcher
CC Todd Albert; MILES Cameron D * GOV
DATE October 9, 2026, 8:32 AM PT
SUBJECT **Re: Publication of the October 1, 2026 Public Records Order, DOJ File No. 121010-GA0187-26**

Mr. Pitcher,

Thank you for the explanation, and for telling me where to find the Sebens order.

I am not a lawyer, and I do not pretend to be one. When I read it, my first thought was that it could not be what your office is relying on. It is a short letter from 2014 about a legislator's office, and its reasoning is one paragraph.

Your office cited it to dismiss my second petition. When I search the Law Library collection for "Sebens," it is the only document that comes up. I cannot find another order, in twelve years, that cites it. The order that cites it on my petition has not been published yet.

So either this order went unused for twelve years until my petition, or it has been relied on in decisions that do not cite it or were never published. Either way, one paragraph from 2014 is what stands between every requester in Oregon and any review of an elected official's fee waiver decision short of a court.

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